

To repeal Tribal Resolution no. 84-30; to adopt rules for legislative committee actions and operations; to provide for public hearings, and for other purposes.

IN THE CHICKASAW TRIBAL LEGISLATURE

December 21, 1990

Ms. Rena DUNCAN, Mr. Russell LAVERS, Mr. Edward A. Jim BROWN, Mr. Robert WOOLLEY and Mr. Robert MARTIN introduced the following bill.

THE BILL

To establish rules defining the operations and functions of legislative committees, and for other purposes.

Be it enacted by the tribal legislature of the Chickasaw Nation assembled, that this Act may be cited as the "Legislative Reform Act of 1991."

SEC.2. The legislature finds that--

(1) A need exists for the Chickasaw Tribal Legislature to adopt clear and specific guidelines for the operation and conduct of its committees.

SEC.3. For the purpose of this Act--

(1) "The Chickasaw Nation" means the tribe of Indians located within the boundaries set forth in the Constitution of the Chickasaw Nation, being duly recognized by the secretary of the United States Department of the Interior, as a self-governing, sovereign government;

(2) "Constitution" means the Constitution of the Chickasaw Nation as ratified by the voters of the Chickasaw Nation on "legislature" means the legislative branch of the Chickasaw

Nation tribal government as created and empowered by Articles V, VI, VII, VIII and IX of the Constitution;

(4) "Committee" or "committees" means any body devised by the legislature, composed of members of the legislature, who are appointed, elected or otherwise selected to serve either for designated terms or for non-designated terms, and to which are delegated or committed a particular duty or duties, in the expectation of any act performed by the committee being confirmed or approved by the legislature as a whole;

(5) "Standing committee" is a committee which considers all bills, resolutions and other items of legislative business falling within the category of matters over which it has been given jurisdiction;

(6) "Sub-committee" is a designated committee within the structure of a standing committee which initially considers a bill and reports back its findings to the standing committee;

(7) "Special" or "select committee" is a committee which investigates and reports on specific matters and terminates when that function has been rendered;

(8) "Joint committee" may be comprised of the members of two or more other standing committees and is, by definition unless otherwise provided by act of the legislature, a special or select committee;

(9) "Ad hoc committee" is a committee which is formed for a specific purpose or function. Like special or select committees, ad hoc committees terminate when that function or purpose has been rendered, but ad hoc committees are not necessarily limited in composition to members of the legislature. Ad hoc committees

may contain special appointees or others who have been selected because of experience or familiarity with the topic for which the ad hoc committee has been formed;

(10) "Chairperson" means that officer of the legislature as defined in Article VII, Sections 1 and 2 of the Constitution;

(11) "Secretary" means that officer of the legislature as defined in Article VII, Sections 1 and 3 of the Constitution;

(12) "Chairman" means that officer of a committee who is appointed, elected or otherwise selected to lead a committee.

SEC.4. The basis for authority of this Act is Article VI, Section 1, of the Constitution, wherein the legislature is granted the legislative authority of the Chickasaw NAtion, and in Article VII, Section 4, wherein the legislature is granted the power and authority to enact rules and regulations pertaining to the Chickasaw Nation in accordance with the Constitution. The Chickasaw tribal Legislature, with the adoption of this Act, hereby:

(a) Repeals Resolution 84-30;

(b) defines legislative committees and their duties and responsibilities; and

(c) adopts rules and regulations for the operation of legislative committees.

SEC.5. The following shall be the standing committees of the Chickasaw Tribal Legislature:

(a) Legislative Committee: sub-committees include rules, agenda, ethics, elections, citizenship, newspaper;

- (b) Finance Committee: sub-committees include budget, finances, salaries, assets of tribe
- (c) Human Resources: sub-committees include personnel, culture, tribal enrollment, tribal operations
- (d) Land Development: sub-committees include business ventures, land use, land management, leases

SEC.6. Each standing committee shall be composed of six members of the legislature. Each legislator shall serve on two standing committees. The chairman of the legislature shall serve on each standing committee and has the option of voting only in case of a tie vote. Each sub-committee shall be composed of three members of the legislature. Each legislator shall not serve on more than three sub-committees of each standing committee.

Special, joint and ad-hoc committees shall be devised, named and appointed by the chairperson of the legislature on an as-needed basis. Final determination of appointments to those committees shall be made by the chairperson, but advice and input may be obtained from other members of the legislature.

SEC.7. Any legislation which is to be considered by the legislature shall be introduced at the monthly committee meetings of the legislature. Review of each piece of legislation shall be done by the legislature as a whole. After each bill or resolution is read by the legislature as a whole, the chairperson shall make the proper assignment of that legislation to one of the committees. When the legislature meets in its respective standing committees on the regular committee meeting date, each committee will review the pieces of legislation which have been referred to it. Each committee shall, when preparing its report to the

legislature as a whole, report each piece of legislation back to the legislature as a whole with a "do pass recommendation," a "do not pass recommendation" or a "no recommendation" recommendation. A committee chairman may, if his committee so chooses, attach a request to one or more pieces of legislation which have received a "do not pass recommendation" or a "no recommendation" recommendation which stipulates the committee's reasons for its recommendation and offers amendments to that piece of legislation. A committee may also report its report is incomplete. Incomplete committee reports must include the number of the piece or pieces of legislation for which the committee has not yet prepared a recommendation and may or may not include the reasons for the delay in the making of a recommendation. All matters which have been assigned to a committee shall be reviewed and made a part of the legislative agenda within 90 days. A committee may recommend a matter go directly to the agenda of the next meeting or declare an emergency and send the matter directly to the floor of the legislature.

SEC.8. Notwithstanding the Constitution and the parliamentary procedures contained in Robert's Rules of Order, the rules and procedures contained in this Act shall be the governing procedure for all meetings and operations of the legislature and of its committees. In all instances in which the Constitution or this Act does not address specific situations, rules or procedures, Robert's Rules of Order shall prevail. The following rules shall apply to all meetings of the legislature and its committees, when in session, provided, that either the legislature or a committee

may elect to conduct its business in an informal manner if the chairperson or chairman shall so determine;

(a) Before any subject is open to debate, it is necessary first: that a motion be made by a member who has obtained the floor; second: that motion be seconded; third: that it be stated by the chairperson or chairman. Only the presiding officer can put the motion before the body. The chairperson or chairman must either rule the motion out of order or state the question;

(b) before a member can make a motion or address the body in debate, it is necessary the member obtain the floor from the presiding officer;

(c) any member who has the floor may make a motion which stipulates in clear and concise language the action that he proposes to have taken;

(d) when a motion has been made and seconded, the presiding officer shall immediately state the question so that it is clear to the body;

(e) after the question has been stated by the presiding officer, it is before the body for consideration and/or action. All resolutions, committee reports and amendments proposed to them may be debated before final action is taken. In a debate, each member has the right to speak only twice on the same question, provided, any member may not make his seconded speech on the same question as long as any member who has not yet spoken on the same question, desires the floor. Debate shall be limited to the pending question. Speakers shall address their remarks to the presiding officer, be courteous in language and avoid dispar-

aging comments. The right of members to debate shall not be interrupted, terminated or eliminated by the presiding officer except as may be provided in Robert's Rules of Order or if a member takes an undue or inappropriate share of time. Once debate is ended and the presiding officer has called for a vote, debate on the question may not be entered into again. According to the Chickasaw Constitution, Article VIII, Section 5, Roll Call votes shall be recorded showing how each member of the Tribal Legislature voted. A member may "pass" and later vote on the same motion, but a member who "abstains" can not.

SEC.9. The legislature and/or one or more of its committees may from time to time desire or be required to conduct public hearings to obtain input from the public on a topic before it. In such instances, notice of public hearings shall be published in "The Chickasaw Times" and in local newspapers in sufficient time to allow for the public to have an opportunity to make comments; provided, however, that if an adequate time frame cannot be provided to allow for "The Chickasaw Times" to publish such notice of public hearing, then every effort shall be made for such notices to appear in local newspapers in sufficient time to allow members of the public to prepare comments. In all cases of public hearings, formality and decorum shall be observed and practiced in the conduction of such hearing.

In order to facilitate questions and answers for pending legislation, a standing committee may request a representative of the Judicial or Executive Branch to appear before a standing committee.

SEC.10. The chairperson shall perform all duties normally appertaining to that office, including signing all official acts of the legislature, as well as other duties which may have already or will be assigned by legislative act.

SEC.11. The secretary of the legislature shall act in the absence of the chairperson or whenever the chairman wishes to relinquish the chair. The secretary shall sign all official acts of the legislature and shall be the responsible party for submitting all legislative acts to the governor. It shall be the responsibility of the secretary of the legislature to notify the legislature any time a gubernatorial veto is made. It shall also be the duty of the secretary to review, critique and approve the minutes of each legislative meeting before those minutes are disseminated to the members.

SEC.12. The secretary of a committee shall act in the absence of the chairman. The secretary of a committee shall be responsible for the taking and maintaining of the minutes of the committee.

SEC.13. The appointment of members to serve on any committee shall be preformed by the chairperson. The chairperson may either designate the members of the committee who shall serve as chairman and secretary or he may leave it to the committee members to select those officers from among themselves.

SEC.14. No member of the legislature may serve more than two consecutive terms of office as chairperson or secretary. committee appointments are for one-year periods. Changes in committee appointments may be made by the chairperson on a yearly basis,

provided that, when a new member of the legislature takes office, his committee assignments must occur within 30 days after taking office.

SEC.15. Legislation may be introduced by any member or by any committee. At the time of its first reading, a piece of legislation will be referred to the appropriate committee by the chairperson.

SEC.16. Any conflicting provision in previous legislation is hereby repealed.

Executed by the Chickasaw Tribal Legislature, meeting at Sulphur, Oklahoma, on December 21, 1991, by a vote of 10 for, 0 against and 0 abstentions.

PASSED

David R. Stout
Chairperson
Chickasaw Tribal Legislature

Bob Martin
Secretary
Chickasaw Tribal Legislature

Concur: Bill Anoatubby Date: DEC 21 1990
Bill Anoatubby, Governor
The Chickasaw Nation